

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

An Appeal filed in terms of Section 331 of the Code of Criminal Procedure Act No. 15 of 1979, read with Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Court of Appeal Case No:

CA/HCC/0053/2024

High Court of Ampara Case No:

HC/AMP/2059/2019

Hathurusingha Pedige Lakshman
Ariyawansha

Accused

AND NOW BETWEEN

Hathurusingha Pedige Lakshman
Ariyawansha

Accused – Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Gamini Perera with Vihanga Rodrigo, Suranjan Indika, and Hasini N.
Rajapaksha for the Accused-Appellant.

: Shanil Kularatne, A.S.G. for the Respondent.

Argued on : 11.03.2026

Decided on : 18.06.2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused-Appellant (hereinafter referred to as “the Appellant”) in this matter was indicted on two counts, namely;
 - a. The kidnapping of a child under 16 years of age from the lawful guardian; and
 - b. The commission of grave sexual abuse on the said child.
2. These offences are punishable under Sections 354 and 365B(2)(b) of the Penal Code, as amended by Acts Nos. 22 of 1995, 29 of 1998, and 16 of 2006.
3. Since the Appellant pleaded not guilty to the charges, a trial was conducted before the High Court of Ampara. At the conclusion of the trial, the Learned High Court Judge found the Appellant guilty on both counts and convicted him accordingly.
4. The Appellant was sentenced to two years’ rigorous imprisonment on the first count, together with a fine of Rs. 10,000/-, in default of which he was to undergo six months’ simple imprisonment.

5. In respect of the second count, the Appellant was sentenced to 15 years' rigorous imprisonment and a fine of Rs. 10,000/-, with a default sentence of six months' simple imprisonment. The Appellant was further ordered to pay a sum of Rs. 300,000/- as compensation to the prosecutrix, in default of which he was to undergo six months' simple imprisonment. The sentences of rigorous imprisonment imposed on the first and second counts were ordered to run consecutively. The default sentences were also directed to run separately.
6. Being aggrieved by the said conviction and sentence, the Appellant has preferred the present appeal. However, when the matter was taken up for argument, Learned Counsel for the Appellant informed the Court that he would confine his submissions to the question of sentence.

Background to the Appeal

7. The Appellant was employed as a driver by the prosecutrix's father. According to the evidence of PW2, the prosecutrix was his grandson. On the day of the incident, PW2, her husband, the prosecutrix, and his brother were the only persons at home, as the prosecutrix's parents had gone to the Ampara Hospital with the prosecutrix's maternal grandmother.
8. In the meantime, the Appellant arrived at the house and took the prosecutrix outside. Shortly thereafter, when PW2 called out to the prosecutrix, he ran back towards the house and jumped into a nearby canal. This conduct was unusual, as the prosecutrix did not ordinarily bathe at that time of day.
9. PW1 is the prosecutrix. According to his evidence, on the day of the incident, the Appellant arrived at the prosecutrix's house on his motorbike and had a cup of tea. When the Appellant was about to leave, he was unable to start the motorbike. He then removed the spark plug and requested the prosecutrix to accompany him, to which the prosecutrix agreed.
10. Thereafter, the Appellant took the prosecutrix to a nearby threshing floor and, having threatened him, committed grave sexual abuse upon the prosecutrix. On the same night,

the prosecutrix informed his mother of the incident, who in turn conveyed it to her husband. On the following day, acting on the instructions of the prosecutrix's father, the prosecutrix was taken by his parents to the Uhana Police Station, where a complaint was lodged.

11. Subsequently, the prosecutrix was admitted to the Ampara Hospital, where he was examined by the Judicial Medical Officer. The evidence of Dr. Ilangoon, the Judicial Medical Officer who examined the prosecutrix, is of considerable importance to the prosecution's case. According to his testimony, the history provided by the prosecutrix was consistent with the injuries observed during the examination.
12. Medical evidence, though primarily corroborative in nature, assumes significant probative value where it is consistent with the testimony of the prosecutrix and supports the occurrence of the alleged act. In the present case, the findings of the Judicial Medical Officer do not contradict the prosecution's version; rather, they are in harmony with the account given by the prosecutrix. Accordingly, the medical evidence serves to strengthen the credibility of the prosecutrix's testimony and provides independent assurance to the Court in accepting the prosecution's case.
13. I shall now consider whether, in the circumstances of the case, the sentence imposed by the Learned High Court Judge of Ampara is excessive and warrants interference or reduction.
14. In determining whether the sentence imposed by the Learned High Court Judge is excessive, it is necessary to consider the well-established principles governing sentencing. Sentencing is not merely punitive; it must reflect a proper balance between the gravity of the offence, the circumstances in which it was committed, and the personal circumstances of the offender. The sentence must be proportionate to the culpability of the Accused while also serving the objectives of deterrence, retribution, and, where appropriate, rehabilitation.
15. In the present case, the nature and seriousness of the offence cannot be understated. The prosecutrix was a minor, and the offence involved a grave violation of bodily integrity

and trust. Such offences warrant the imposition of a deterrent sentence, particularly in light of the increasing prevalence of offences against children.

16. However, it is equally incumbent upon the Court to consider any mitigating factors. These may include the age of the Appellant, the absence of previous convictions, the circumstances leading to the commission of the offence, and any other factors that may bear upon the proportionality of the sentence. The Court must also consider whether the Learned Trial Judge has adequately taken into account both the aggravating and mitigating circumstances and has provided reasons for the sentence imposed.
17. It is well settled that an appellate court will not ordinarily interfere with a sentence imposed by a trial court unless it is manifestly excessive or inadequate, or where the trial court has acted on a wrong principle or failed to consider relevant factors. Thus, the question for determination is whether, in the totality of the circumstances, the sentence imposed is so disproportionate as to warrant interference by this Court.
18. Accordingly, the sentence must be assessed in light of the seriousness of the offence, the surrounding circumstances, and the principles of proportionality and fairness, in order to determine whether any reduction is justified.
19. In ***Archbold: Sentencing Guidelines (2019), Thomson Reuters, on page 274***, under the heading of applicability of guidelines on sexual offences, it is stated that;

“Starting points define the position within a category range from which to start calculating the provisional sentence.

..... Once the starting point is established, the court should consider further aggravating and mitigating factors and previous convictions so as to adjust the sentence within the range. Starting points and ranges apply to all offenders, whether they have pleaded guilty or been convicted after trial.”
20. The following authorities emphasize the significance of imposing a sentence proportionate to the gravity of the offence and provide key guidelines to assist in determining an appropriate sentence.

21. As decided by the Indian Supreme Court in the case of ***Alister Anthoney Pereira vs. State of Maharashtra [2012] AIR 3820 (SC)***,

“Sentencing policy is an important task in the matters of crime. One of the prime objectives of criminal law is imposition of appropriate adequate just and proportionate sentence commenced with the nature and gravity of the crime and the manner in which the crime is done. There is no straight-jacket formula for sentencing an accused on proof of crime. The courts have evolved certain principles: Twin objectives of sentencing policy are deterrence and correction what sentence would meet the ends of Justice depends on the fact and circumstances of each case and the court must keep in mind the gravity of the crime, motive for the crime, nature of the offense and all other attendant circumstances. The principle of proportionality in sentencing is a crime duo is well entrenched in criminal jurisprudence. As a matter of law proportion between crime and punishment bears mostly relevant influence in determination of sentencing the crime to a full stop the court has to take into consideration all aspects including social interest and consciousness of the Society for award of appropriate sentence.”

22. ***Illakotulena Gamaralalage Thilakerathna vs. Officer in Charge, Motor Traffic Division, Police Station, Kandy SC Appeal No. 173/2017***, decided on: 22-10-2024, the Supreme Court observed that:

“Consideration of aggravating or mitigatory circumstances generally, has relevance to the assessment of the seriousness of the offence. The appropriate effect on such consideration in sentence would depend on the circumstances of each case, in which the Court can take note of any factor it considers to aggravate or mitigate the imposed sentence. As such, the consideration of proportionality of the sentence to the gravity of the convicted offence must be well reasoned.”

23. In the present case, the Appellant was employed as a driver by the prosecutrix’s father. Needless to say, the Appellant was no stranger to the prosecutrix, and acting on the trust placed in him by the family, the prosecutrix accompanied him without hesitation when he requested that the prosecutrix come with him to obtain a spark plug from a nearby house. Unarguably, the Appellant misused the trust reposed in him by the prosecutrix’s family and committed the alleged offence.

24. At the time of the incident, the prosecutrix was 11 years old, whereas the Appellant was in his early 40s and had three children. As is evident from the prosecution evidence, the Appellant took advantage of the opportunity when the prosecutrix's parents were not at home, and the prosecutrix was under the care of his grandmother. The prosecutrix, having placed trust in the Appellant, who was a frequent visitor to the household, went with him and was subjected to the said ordeal. It is also significant that the complaint was made promptly, the prosecutrix disclosing the incident to his mother at the earliest opportunity.
25. Offences of this nature involving children are on the rise, and the legislature, in its wisdom, has enacted stringent laws to deter perpetrators and to convey a clear message that no leniency shall be shown to those convicted of child abuse. These stringent provisions are intended to protect future generations from the scourge of such abuse.
26. The fact that the Appellant has no previous convictions cannot, in itself, be regarded as a sufficient ground for the exercise of leniency, particularly having regard to the grave nature of the offence. As revealed by the medical evidence, the prosecutrix had sustained injuries to the anus consequent to the alleged act.
27. There are instances where offences are committed suddenly, without premeditation, in the heat of passion arising from grave and sudden provocation, and in such circumstances, courts have, on occasion, extended a degree of leniency notwithstanding the seriousness of the offence. However, offences of this nature do not, in my view, fall within that category so as to warrant leniency, as no such exceptional or compelling circumstances are discernible from the conduct of the appellant.
28. Although there have been rare instances where courts have departed from the minimum mandatory provisions in cases of sexual abuse upon the existence of compelling and exceptional circumstances, the facts of the present case do not, in any event, justify such a departure. On the contrary, the Appellant exploited the absence of the prosecutrix's parents and subjected the prosecutrix to the offence, which militates against the grant of any form of clemency.
29. In the circumstances, while this Court is mindful of the need for deterrent sentencing in offences of this nature, it is equally required to ensure that the sentence imposed is

proportionate to the culpability of the offender and the circumstances of the case. The gravity of the offence, the age of the prosecutrix, and the breach of trust involved are undoubtedly aggravating factors that call for a stern response from the Court.

30. Having carefully considered the totality of the circumstances, I am not persuaded that the sentence imposed by the Learned High Court Judge is excessive or disproportionate so as to warrant interference by this Court. The Learned High Court Judge has carefully analyzed the factual background of the case, particularly the circumstances under which the offences were committed, and has thereafter imposed the sentence on the Appellant.
31. Accordingly, I see no basis to disturb the sentence imposed on the Appellant. In the circumstances, I dismiss the appeal.
32. The Registrar of this Court is directed to communicate this judgment to the High Court forthwith and to take all necessary steps to give effect to this Order.

Judge of the Court of Appeal

P. Kumararatnam, J

I agree,

Judge of the Court of Appeal